

**Dadra and Nagar Haveli
Planning and Development Authority**

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Silvassa- 396 230.

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No.DNHPDA/102(71)/Auction/Riverfront/2024/843

Dated:13/06/2024

NOTICE

E-Auction for renting of **Cafeteria along with open space at Damanganga Riverfront, Silvassa** will be held from date **17/06/2024** to **08/07/2024** through online portal i.e. <https://pdadnhrent.com/> The interested bidders will have to register for online auction on portal for bidding of **Shops by paying fee of Rs.1100/- wherein Rs. 100/- (Non-refundable) shall be taken as Registration Fees and Rs. 1000/- (Refundable) as Earnest Money Deposit (EMD)**. The bidders can download terms and conditions from online portal and will have to agree upon all the terms and conditions for bidding. The location of Shops can be visited at Damanganga Riverfront, Silvassa by the interested bidders during the office hours before the end of e-auction.

Sd/-

Member Secretary
DNHPDA, Silvassa

Copy submitted to:-

- 1) The Chairman, DNHPDA, for kind information please.



DADRA & NAGAR HAVELI
PLANNING & DEVELOPMENT AUTHORITY

DADRA AND NAGAR HAVELI
PLANNING & DEVELOPMENT
AUTHORITY

**TENDER DOCUMENT FOR E-AUCTION
FOR ALLOTMENT OF CAFETERIA ALONG
WITH OPEN SPACE AT DAMANGANGA
RIVERFRONT, SILVASSA.
YEAR – 2024**

**TERMS AND CONDITIONS OF E-AUCTION FOR
ALLOTMENT OF CAFETERIA ALONG WITH OPEN SPACE AT
DAMANGANGA RIVERFRONT, SILVASSA.ON RENTAL BASIS.**

1. To participate in this online auction, the bidder shall register himself on the portal by giving all the required details and paying registration fee if any after agreeing upon various terms and conditions.
2. **Procedures for allotting Cafeteria along with open space at Damanganga Riverfront, Silvassa to the bidders:**

- The Member Secretary, Planning and Development Authority or the Administrative Officer, Planning and Development Authority shall have right to withdraw any allotment of Cafeteria along with open space at Damanganga Riverfront, Silvassa from the auction. He may accept or reject any bid/offer or may stop any bidder at any stage of auction from bidding without assigning any reason thereof. No appeal against above action by the Department shall be entertained. Person intending to participate in auction shall have to pay fee of **Rs. 1100/- wherein Rs. 100/- (Non-refundable) shall be taken as Registration Fees and Rs. 1000/- (Refundable) as Earnest Money Deposit (EMD) for Cafeteria along with open space at Damanganga Riverfront, Silvassa** and the same shall be submitted through online on the portal <https://pdadnhrent.com/>.
- The EMD, identity proof, address proof, bank details, disability certificate (if applicable) and all tender related documents shall be submitted in physical in PDA office in single sealed envelope. The envelope shall only subscribe/title **“E-auction of Cafeteria along with open space at Damanganga Riverfront, Silvassa”** and **“Registration ID”** generated during the time of registration on online portal. The bidder shall not disclose the bid amount in any document except on online portal. If bid amount is disclosed in any physical documents of tender the bidder will be disqualified.

The officers superintending the auction of entire premises shall conduct the auction of any areas in the following manner:

- a) The auction shall be conducted by taking bids online, in between the auction start time and end time, the time will duly be advertised in the newspaper as well as auction portal.
- b) The auction will start from the minimum limit of rent set for each Cafeteria along with open space at Damanganga Riverfront, Silvassa by the committee at point no.09.
- c) The bid shall be submitted from the minimum limit set for Cafeteria along with open space at Damanganga Riverfront, Silvassa through online portal.
- d) The bidder shall submit his account details like account number, IFSC code etc. at the time of registration on portal.
- e) The bids will be valid only when the EMD and auction Fees are submitted.
- f) The Cafeteria along with open space at Damanganga Riverfront, Silvassa will be handed over to the highest bidder. In case of the highest bidder is disqualified for any reason the Cafeteria along with open space at Damanganga Riverfront, Silvassa will be licensed to next highest bidder.
- g) If the bids by bidders for a particular the Cafeteria along with open space at Damanganga Riverfront, Silvassa is same, then the shop shall be allotted to bidder who has not been allotted any other shop in the present bid or who does not already hold any shop in his or her name. If this fails then both the bidders will be called together and a draw will be conducted through chits, each chit will have the bidders name along with Space Name. in it, thereafter whichever chit is opened with any of either name, the space will be given to him/her.
- h) If the documents required for bidding are not submitted the bid will be rejected and shall go to next highest bidder.

3. THE ELIGIBILITY CRITERIA FOR THE LESSEE: -

For the Cafeteria along with open space at Damanganga Riverfront, Silvassa are as under: -

The lease should be Indian national and ordinary citizen of DNH, have following any of the below mentioned documents:-

1. Aadhar Card/Election Card/Pan Card/Diving License. (any one)

- 2. Food Safety and Standards Authority of India (FSSAI) valid license.**
- 3. Certificate from auditor / CA specifying the annual turnover of minimum Rs. 3.00 Lakhs in last 03 financial years from Restaurant or food catering business.** (Restricted to bidding process of Shops no 3 & 4 only.)
4. The EMD of any unsuccessful bidder will be returned at the close of the auction on production of a stamped receipt and EMD of the successful bidder shall be adjusted at the time of final payment made by the bidder. No bidder shall be permitted to retract the bid. In the event of dispute between the bidders, the dispute shall be decided by the Member Secretary, DNHPDA. His decision in this respect shall be final and binding on all persons offering bids at the auction. The bids offered in any other manner except hereto before mentioned shall not be considered. In case of failure of the bidder to pay either rent or in case of retraction, EMD shall be summarily forfeited and the shop may be allotted to next highest bidder or may be put in another auction at the discretion of the authority.
5. Participants must submit self-declaration of type of business and upload on the portal while taking part in auction and in case of change of his/her business he/she shall take written permission of Dadra and Nagar Haveli Planning and Development Authority before doing business.
6. Participant of auction may offer his highest monthly rent from minimum limit set on point No.09 for particular Cafeteria along with open space at Damanganga Riverfront, Silvassa he/she is willing to keep on rent.
7. These **Cafeteria along with open space at Damanganga Riverfront, Silvassa** will be allotted initially for the period of **three (03) years** on rental basis. However, after three years period the same space will be allotted as decided by the DNHPDA. The cost of registration of the lease of space shall be borne by the bidder.
8. The Presumed Annual rent of entire premises shall automatically increase by 4% annually as per Notification Ni. DNH/SMC/RULES/06/218/275 Dated 09/02/2018 rules shall be deemed to have been amended to that extent.

9. The minimum rent including with service charge/tax/(GST)of each shop & cart is mentioned below:

Auction No – 03					
Details of Cafeteria along with open space at Damanganga Riverfront, Silvassa					
Sr. No	Description	Total Area in Sq. Mt. for each	Amount per month in Rs. Per shop/ cart	Nos of Shop/ cart	Remark
1	2	3	4	5	6
1	Shop no 3 & 4 (Open shop 32.50 x 31.00 feet each) along with open space	332.50	10000.00	2	Documents required as per point No. 03
2	Mobile Cart (for food and dessert)	-	2000.00	3	

Bids increased through paisa will not be counted (E.g. The (A) shopkeeper bids Rs.6500.00 and the other (B) shopkeeper bids Rs.6500.25 then the amount of both shopkeepers will be counted same i.e. Rs.6500/-)

The service charge/tax/ (GST) is included in point No.09 that shall have to be paid by the tenants. Such service charges shall be collected by the DNHPDA from the tenant's including with the rent and in turn shall pay to the concern authority.

10. The entire premises comprising of **Cafeteria along with open space at Damanganga Riverfront, Silvassa** has a participating fee in e-auction of Rs. 1100/- wherein Rs. 100/- (Non-refundable) shall be taken as **Registration Fees** and Rs. 1000/- (Refundable) as **Earnest Money Deposit (EMD)** through online payment, which shall be submitted during registration for bidding.
11. The successful bidder must deposit **amount i.e. Rs. 25,000/- for each shop and Rs 5,000/- for each mobile cart** through F.D. (Fixed Deposit) in favour of Planning and Development Authority, Silvassa and submit at the department of DNHPDA, Silvassa Physically within 15 days of intimation of allotment to him otherwise his allotment will be stand cancelled and the same shop shall go to next highest bidder.

12. The **amount i.e. Rs. 25,000/- for each shop and Rs 5,000/- for each mobile cart** will be permanently deposited in account of Planning and Development Authority if any damage to the property of Damanganga Riverfront, Silvassa or non-payment of rent.
13. The rent deed/agreement shall be executed only after the payment of security deposit within stipulated period.
14. The allotment of entire premises/space to the eligible and successful bidder shall be given by the Member Secretary on full payment of amount of security deposit to the DNHPDA and on execution of agreement/rent deed on proper stamp paper costing **Rs. 100/- (Rs. Hundred only)** in prescribed format. The cost of stamp paper and other incidental charges shall have to be borne by the successful bidder/allottee.
15. During monsoon season, since flooding is observed on riverfront, the operator of Shop no 3, Shop no 4 and Mobile carts shall have to remove all equipments and non- permanent structure during monsoon season i.e **July and August month** and operators may resume the operations from the 1st September of every year or any other date if so communicated and directed by the authority.
16. The allottee/tenant or his/her servant can make changes in electrical wiring, fittings etc. carried out by the Planning and Development Authority with prior permission of the Member Secretary, Planning and Development Authority, Silvassa.
17. The allottee/tenant shall have to pay himself any electrical bill, telephone bill, water bill, charges on account of fire safety and security of article within the shop, any other charges by the Authority and Government from time to time. The Planning and Development Authority will not be responsible for any such kind of payment in any circumstances. The tenants shall be solely responsible for discontinuation of any service due to nonpayment of bills etc.
18. The allottee shall compulsory install fire safety equipment in the shop.
19. The allottee shall not utilize any additional common space other than the allotted area of **Cafeteria along with open space and for mobile cart**. The encroachment in service passage, staircase area and other open space shall not be allowed.

20. The allottee shall utilize the premises allotted to him/her only for the purpose mentioned by him/her in his/her application/lease agreement/tender form/allotment order. If at any time the allottee intends to change the use prior permission of the Member Secretary, Planning and Development Authority, has to be obtained. However, under no circumstances, the sale of articles that are objectionable, prohibited or injurious would be permitted.
21. If the allottee, after handing over the possession of the shop, desires to surrender the shop in less than 12 months from the date of allotment, than the **amount i.e. Rs. 10,000/- for Cafeteria along with open space at Damanganga Riverfront, Silvassa (for each shop 1 to 4) & amount i.e. Rs. 2,000/- for each mobile cart** will be forfeited.
22. The allottee shall obtain 3 phase/1 phase connection for the allotted premises & bill generated for the said premises shall pay directly to M/s DNHDDPDCL and receipt of the same shall be submitted to DNHPDA.
23. The allottee under any circumstances shall not be allowed to indulge into any kind of criminal activities, gambling etc. in the allotted premises and shall not use the **Cafeteria along with open space and mobile cart** for following works and sale:
- i. Workshop or any business which required electrical motor more than 1 HP capacity.
 - ii. Any kind of manufacturing unit.
 - iii. Sale and storage of articles like meat, beef and fish and hotel purpose.
 - iv. Any kind of explosive articles including crackers, cooking gas, etc.
 - v. Sale and storage of objectionable, prohibited and injurious articles.
 - vi. Sale and storage of explosive and injurious chemicals.
 - vii. Any articles generating bad odor and creating environmental pollution.
 - viii. Any kind of automobile garage, cycle store or its maintenance, repairing etc.
 - ix. For the purpose of residence.
 - x. To display or exhibit pictures, posters statues or other articles which are repugnant to the morale are of indecent, immoral or other improper character.

- xi. To display or exhibit any advertisement or placard or put up a hoarding part of the interior or exterior other than those permitted expressly in writing by Planning and Development Authority, Silvassa.
 - xii. To keep any animals in or outside the **Cafeteria along with open space.**
- 24.** The Application form described with the type and nature of business which is proposed to be established. If it is found that any time the nature of business is violating the conditions No. (22& 23) above, and/or found to be reasonably objectionable which may harm and/or bring nuisance of any kind to the area, the area will be closed and the allotment will be cancelled forthwith after giving sufficient opportunity to be heard. The order of Member Secretary, PDA Silvassa will be binding to all.
- 25.** The allottee shall maintain the premise including open space in good condition, provide sufficient dustbin and must ensure no garbage or waste is thrown or dumped in river & entire riverfront premises.
- 26.** The allottee shall maintain the Cafeteria along with open space. If found in Damaged condition, the allottee shall repair and change (if required and directed by Member Secretary, DNHPDA) the same at his own cost
- 27.** The allottee shall ensure compliance of all laws relating to cleanliness, sanitary, hygienic and health conditions and other laws in force from time to time with regard to the environment around cooking place, dining hall and surrounding etc.
- 28.** It shall be responsibility of the allottee to collect the waste water and dispose it in nearest fictional manhole of Silvassa municipal council. Under no circumstance the allottee shall dispose the waste water in river or elsewhere.
- 29.** No outside vehicles shall be permitted on the Riverfront except for vehicles permitted by the Authority. Heavy vehicles on river front damage the property, hence light vehicles (as may be permitted by the PDA), or all electric vehicles, only shall be permitted to carry or transport the goods on Riverfront.
- 30.** The Member Secretary, Planning and Development Authority, or its

authorized agents reserve the right to inspect the premises at any time by giving due notice to the allottee.

31. The Member Secretary, DNHPDA / authority reserves the right impose penalty (as decided by the competent authority), if premises are not found in proper condition.
32. The Member Secretary, Planning and Development Authority, shall have the right to alter any terms and conditions in future.
33. The allottee shall not carry out any illegal activities, anti-social activities, anti-national activities etc. in the premises.
34. The allottee shall be responsible to obtain necessary license, permit or permission required as per law to run the business of such nature and also to pay by himself/herself only any kind of Government/Municipal tax and other tax etc. applicable to run the business. The allottee shall have to obtain all require statutory and legal permission at his level and at own cost, if necessary to run the business. The Planning and Development Authority shall not be responsible for any such lapse on the part of the allottee.
35. The allottee/tenant shall pay the full amount of **applicable rent including with service charge/tax/(GST) of (01 months)** 10 days in advance prior to the initiation of the next month i.e. applicable rent of the said month, and in case of default/lapses being made in payment on the due date, the Tenant shall be liable to **pay delay charges of Rs. 1000/- per month** for the period the rent stands unpaid from the due date provided that if the default continues for a period of 2 Months or more, the Member Secretary, Planning and Development Authority, shall also be entitled to evict the tenant lawfully from the premises by terminating his tenancy.
36. In the event of any dispute or question arising as to the interpretation of any condition, words etc. appearing, herewith it shall be referred to the Member Secretary, DNHPDA and his decision there on shall be final and binding to both the parties and no claim of any kind of such interpretation will be entertained. However, the appellant authority will be the Collector/Chairman, DNHPDA, Dadra and Nagar Haveli, Silvassa. By participating in this tender, the applicant is ageing to the fact that the dispute shall be sent to an arbitrator appointed by Authority and the decision of Arbitrator shall be final. The Civil Court

shall have no objection for the same.

- 37.** The allottee shall not be entitled to get its/their name entered in to the record of the Government and Municipality; the property will remain on the name of the Planning and Development Authority, only. Successful tenants have to execute the agreement with the DNHPDA for regular payment of rent and for fulfillment of the all above conditions. The allottee shall have to pay the property tax, advertisement tax and all other taxes to the DNHPDA/Concern Dept.
- 38.** At any time, if Authority requires any or entire premises, in interest of general public or for providing better services to the citizens, the tenants shall be given prior notice of three months period for vacating the premise's and on expiry of such notice period the allottee/tenants shall without any further notice from the DNHPDA vacate the premises and handover the peaceful possession of the said area to DNHPDA in the same good condition as he/she received it from the Authority, normal wear & tear being excepted, however, in such cases, the Authority shall take all actions for rehabilitation of the affected tenants by allotting the space available at other places within the area of Authority with new terms and conditions and in case if rehabilitation is not possible, the security deposit will be released to the allottee/tenants immediately after taking possession of the shops without interest.

Sd/-

Member Secretary
DNHPDA, Silvassa

Site Location for Shop no 3 & 4



Shop No 3 & 4 Ras resort side area of Damanganga Riverfront, Silvassa.